

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
CH-1	Chapter 1 — General Provisions	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 1	N/A	Scope of Application: This Act applies to the protection of natural persons in connection with processing of personal data. It sets forth public entities obliged to designate a data protection officer; conditions and mode of accrediting certification bodies; conditions and mode of certification; conditions and mode of drawing up, issuing opinions on, approving, and monitoring compliance with codes of conduct; proceedings in cases of infringement of personal data protection provisions; conditions of liability for damages; and administrative and criminal sanctions.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 2	N/A	Exemptions for Press, Literary, and Academic Activities: The provisions of GDPR Articles 5–9, 11, 13–16, 18–22, 27, 28, and 30 shall not apply to activities consisting in editing, preparing, creating, or publishing press materials, or to literary or artistic activities. The provisions of GDPR Articles 13, 15, 18, 27, 28, and 30 shall not apply to academic expression.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 3	N/A	Controller Exemption from Article 13(3) Notice (Public Task): The controller performing a public task shall not convey information referred to in GDPR Article 13(3) if a change in purpose of processing serves performance of a public task and non-fulfilment is necessary to fulfil the purposes referred to in GDPR Article 23(1). The controller shall inform the data subject at its request, within one month, about the grounds for not conveying the information.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 4	N/A	Controller Exemption from Article 14(1)(2)(4) Notice (Public Task): In matters not regulated in GDPR Article 14(5), the controller performing a public task shall not convey information referred to in GDPR Article 14(1), (2) and (4) if this serves performance of a public task and non-fulfilment is necessary to fulfil the purposes referred to in GDPR Article 23(1). The controller shall inform the data subject at its request, within one month, about the grounds.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 5	N/A	Controller Exemption from Article 15(1–3) Access Rights (Public Task): The controller performing a public task shall not convey information referred to in GDPR Article 15(1)–(3) if this serves performance of a public task and non-fulfilment is necessary to fulfil the purposes in GDPR Article 23(1). Where fulfilling GDPR Article 15(1) and (3) would involve disproportionate effort, the controller may ask the data subject for information enabling retrieval of the data.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 5a	N/A	Restriction on Article 15 Rights When Data Received from Public Entity: The controller who received personal data from a public entity does not comply with GDPR Article 15(1) and (3) where the transferring entity requested this due to the need to properly perform a public task aimed at prevention, detection or prosecution of criminal offences, execution of criminal penalties, or protection of the State's economic or financial interests.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 6	N/A	Exclusions from the Act and GDPR (National Security and Special Forces): The Act and GDPR shall not apply to processing of personal data by entities of the public finance sector to the extent necessary for tasks aimed at guaranteeing national security, if special provisions stipulate necessary measures protecting rights and freedoms of the data subject; or to activities of special forces within the meaning of the Act on the Internal Security Agency.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 6a	N/A	Processing by the Office of the President of the Republic: Specified GDPR provisions apply respectively to processing of personal data within exercise of the constitutional and statutory competences of the President of the Republic of Poland, in the scope not covered by national security. Processing of special categories of data shall take place in the scope necessary to exercise such constitutional and statutory competences.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 7	N/A	Administrative Procedure Before the President of the Office: In matters not regulated in the Act, the Code of Administrative Procedure shall apply to administrative procedures before the President of the Personal Data Protection Office. The procedure shall be a single-instance procedure. Appeal provisions shall not apply to resolutions issued in these procedures.	Functional	No Relationship	N/A	N/A	N/A	0	
CH-2	Chapter 2 — Designation of the Data Protection Officer	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 8	N/A	Obligation to Designate a DPO: The controller and the processor shall be obliged to designate a data protection officer (officer) in the cases and in accordance with the principles set out in GDPR Article 37.	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
Art. 9	N/A	Public Authorities Obligated to Designate a DPO: The public authorities and bodies obliged to designate the officer referred to in GDPR Article 37(1)(a) shall mean entities of the public finance sector; research institutes; and the National Bank of Poland.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 10	N/A	Notification of DPO Designation to the President of the Office: The entity which has designated an officer shall notify the President of the Office within 14 days of designation, indicating the officer's name and contact details. The entity shall also notify about every change of data and about recall of the officer within 14 days.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 11	N/A	Publication of DPO Contact Details: The entity which has designated an officer shall provide the officer's contact data immediately after designation on its website, or if it does not run a website, in a commonly available manner at the place of business.	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
Art. 11a	N/A	Deputy/Replacement for the DPO: The entity which has designated an officer may designate a person replacing the officer during absence, considering the criteria in GDPR Article 37(5) and (6). The provisions concerning the officer shall apply respectively to the person replacing the officer during absence.	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
CH-3	Chapter 3 — Conditions and Mode of Accrediting the Certification Body	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 12	N/A	Granting of Accreditation for Certification Bodies: Accreditation of bodies applying for a certification license with regard to protection of personal data referred to in GDPR Article 43 shall be granted by the Polish Centre for Accreditation. Accreditation shall be granted in accordance with the principles set out in GDPR Article 43(1)–(7).	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 13	N/A	Publication of Accreditation Criteria: The President of the Office shall provide on his or her website, in the Public Information Bulletin, the accreditation criteria referred to in GDPR Article 43(3).	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 14	N/A	Information Exchange Between Polish Centre for Accreditation and President of the Office: The Polish Centre for Accreditation shall inform the President of the Office about an accreditation being granted, indicating the entity, scope, and period of validity. The Polish Centre for Accreditation shall also inform the President of the Office about an accreditation being revoked.	Functional	No Relationship	N/A	N/A	N/A	0	

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CH-4	Chapter 4 — Conditions and Mode of Certification	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 15	N/A	Who Performs Certification: Certification referred to in GDPR Article 42 shall be performed by the President of the Office or the certification body, upon the request of the controller, processor, manufacturer, or entity marketing a service or product. Certification shall be performed in accordance with the principles set out in the Regulation.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 16	N/A	Publication of Certification Criteria: The President of the Office shall provide on his or her website, in the Public Information Bulletin, the certification criteria referred to in GDPR Article 42(5).	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 17	N/A	Application for Certification (Content Requirements): The application for certification shall contain at least the name of the entity, information confirming fulfillment of certification criteria, and an indication of the scope of the certification. Supporting documents and, if certification is performed by the President, proof of fee payment shall be attached.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 18	N/A	Processing Time and Review of Certification Application: The President of the Office or the certification body shall consider the application and, within 3 months of receipt of a compliant application, after checking whether the certification criteria have been fulfilled, shall notify the applicant about either successful certification or its refusal.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 19	N/A	Prior Notification to the President of the Office by Certification Body: Prior to the certification or its refusal, the certification body shall notify the President of the Office about the planned certification or refusal.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 20	N/A	Refusal of Certification: Should it be determined that the entity applying for certification does not fulfil the certification criteria, the President of the Office or the certification body shall refuse to perform it. The refusal of the President of the Office shall be made by way of a decision.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 21	N/A	Certificate Document Requirements: The document confirming certification shall be a certificate. The certificate shall contain at least a designation of the entity, the name and address of the certification body, the certificate's number or symbol, the scope including the period for which certification was performed, and the date of issue and signature.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 22	N/A	Ongoing Obligations and Revocation of Certificate: During the period for which the certification was performed, the entity to which the certificate was granted shall be obliged to fulfil the certification criteria in effect on the day the certificate was issued. The President of the Office or the certification body shall revoke a certificate where the conditions for certification are not, or are no longer, met.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 23	N/A	Public Register of Certified Entities: The certification body shall convey to the President of the Office the data of the entity to which a certificate was granted as well as the entity whose certificate was revoked, with an indication of the reason for revocation. The President of the Office shall keep a publicly available list of such entities.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 24	N/A	President of the Office's Right to Inspect for Certification Purposes: Within the certification period and after certification, the President of the Office has the right to conduct an inspection at the controller's, processor's, manufacturer's, or service/product entity's premises to assess fulfillment of certification criteria. The inspection shall be conducted not earlier than 7 days and not later than 30 days after delivery of notification.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 25	N/A	Powers of the Inspector Conducting Certification Inspection: The person conducting the inspection shall be authorized to: enter land, buildings, and premises on business days during business hours; inspect documents and information related to the certified business operations; inspect devices, media, IT and ICT systems used in data processing; and request oral or written clarifications on issues associated with the certified operations.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 26	N/A	Fee for Certification Activities: The President of the Office shall charge a fee for activities associated with certification; its value shall correspond to the anticipated costs of these activities. The maximum fee cannot exceed a four-fold of the average remuneration in the national economy in the calendar year preceding the year of submission of the application.	Functional	No Relationship	N/A	N/A	N/A	0	
CH-5	Chapter 5 — Drawing up and Approving the Code of Conduct; Accrediting the Monitoring Body	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 27	N/A	Drawing up, Consulting, and Approving the Code of Conduct: The drawing up, issuing an opinion on, and approving the code of conduct shall be in accordance with the principles set out in the GDPR. Prior to being forwarded to the President of the Office for approval, the code of conduct shall be consulted with interested entities. Information about the consultations and their outcome shall be conveyed with the code of conduct.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 28	N/A	Monitoring Body for Approved Codes: Compliance with the approved code of conduct shall be monitored by a body accredited by the President of the Office in accordance with the principles set out in GDPR Article 41.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 29	N/A	Application for Accreditation of the Monitoring Body: Accreditation of the monitoring body shall be granted upon request containing at least the name of the body applying for accreditation and the address of its registered office, and information confirming fulfillment of the criteria referred to in GDPR Article 41(1) and (2).	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 30	N/A	Processing of Accreditation Application (Monitoring Body): The President of the Office shall consider the application and, within 3 months of receipt, after checking whether the criteria in GDPR Article 41(1) and (2) have been fulfilled, shall notify the body applying for accreditation about either successful accreditation or its refusal.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 31	N/A	Accreditation Certificate Document (Monitoring Body): The document confirming accreditation shall be an accreditation certificate. The accreditation certificate shall contain at least a designation of the accredited body and the address of its registered office, the accreditation certificate's number or symbol, and the date of issue and signature of the President of the Office.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 32	N/A	Ongoing Obligations and Revocation of Monitoring Body Accreditation: During the period for which accreditation has been granted, the accredited body shall be obliged to fulfil the criteria in GDPR Article 41(1) and (2) in effect on the day the accreditation certificate was issued. The President of the Office shall revoke the accreditation by way of a decision should it be determined that the accredited body does not fulfil or ceased fulfilling the criteria.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 33	N/A	Public Register of Accredited Monitoring Bodies: The President of the Office shall keep a publicly available list of accredited bodies. The President of the Office shall make an entry on the list immediately after accreditation, publish the list on the website in the Public Information Bulletin, and shall update it.	Functional	No Relationship	N/A	N/A	N/A	0	
CH-6	Chapter 6 — President of the Office	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 34	N/A	Establishment and Role of the President of the Office: The President of the Office is the authority competent in matters of personal data protection and is a supervisory authority within the meaning of the GDPR. The President of the Office shall be appointed and recalled by the Sejm of the Republic of Poland upon the consent of the Senate.	Functional	No Relationship	N/A	N/A	N/A	0	

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Art. 35	N/A	Oath of the President of the Office: Prior to assuming duties, the President of the Office shall take an oath before the Sejm swearing to observe the provisions of the Constitution of the Republic of Poland, to safeguard the right to personal data protection, and to perform the duties entrusted conscientiously and impartially.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 36	N/A	Deputy Presidents of the Office: The President of the Office may appoint up to three deputies. A deputy must be a Polish citizen with higher education, expert legal knowledge and experience in personal data protection, full public rights, no convictions for intentional crimes, and good reputation.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 37	N/A	Restrictions on Outside Activities (President and Deputies): The President of the Office and deputies may not hold other posts except didactic, scientific, or didactic-scientific positions at a university, or pursue activities inconsistent with their duties. They may not belong to any political party, trade union, or conduct public activity irreconcilable with the dignity of their office.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 38	N/A	Immunity from Criminal Liability (President of the Office): The President of the Office may neither be held criminally liable nor deprived of liberty without the prior consent of the Sejm. The President of the Office may not be detained or arrested, except in the act of committing a criminal offence, provided that detention is necessary to secure the due course of proceedings.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 39	N/A	Statute of Limitations During Immunity: In criminal proceedings, the period of limitation for an act covered by immunity shall not run in the period in which the immunity is valid.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 40	N/A	Filing Application for Consent to Criminal Liability: An application for consent to holding the President of the Office criminally liable in a case concerning an offence prosecuted by public indictment shall be filed through the Prosecutor General. An application concerning an offence prosecuted by private indictment shall be filed by a private prosecutor after the case has been brought to court.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 41	N/A	Procedure for Handling Immunity Waiver Applications (Sejm): The application for consent to holding the President of the Office criminally liable shall be filed to the Marshal of the Sejm. If the application meets formal requirements, the Marshal shall direct it to the competent authority of the Sejm. The Sejm shall consent to criminal liability by way of a resolution adopted by an absolute majority of the statutory number of deputies.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 42	N/A	Procedure for Consent to Detention or Arrest: The prohibition on detention covers all forms of depriving or restricting the liberty of the President of the Office by authorities authorized to apply coercive measures. The application for consent to detain or arrest the President of the Office shall be filed through the Prosecutor General.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 43	N/A	Publication of Sejm Resolutions on Immunity: The Marshal of the Sejm shall immediately send the relevant resolutions to the applicant. The resolutions concerning consent to criminal liability and consent to detention or arrest shall be published in the Official Gazette of the Republic of Poland 'Monitor Polski'.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 44	N/A	Application of Immunity Provisions to Petty Offences: The provisions of the Act concerning the criminal liability of the President of the Office shall apply accordingly to liability for petty offences.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 45	N/A	Personal Data Protection Office (Establishment and Structure): The President of the Office shall perform his or her tasks through the Personal Data Protection Office. In situations justified by the nature and number of cases, the President of the Office may establish local branches of the Office.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 46	N/A	Obligation of Confidentiality (President, Deputies, and Staff): The President of the Office, the deputies, and the Office's employees shall be obliged to keep confidential any information acquired in connection with their duties. The obligation to keep confidential the information shall remain in effect also after the lapse of the term of office or term of employment.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 47	N/A	Official Identity Cards (Regulation): The Council of Ministers shall define, by way of a regulation, a specimen of the official identity card of the Office's employee, taking into account the need to ensure the possibility of identifying persons authorized to perform inspections and other official duties.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 48	N/A	Personal Data Protection Council (Composition and Tasks): A Personal Data Protection Council, which is a consulting and advisory body, shall be affiliated to the President of the Office. Its tasks include providing opinions on EU draft documents concerning personal data protection, providing opinions on draft legislative measures, and preparing proposals of certification criteria referred to in GDPR Article 42(5).	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 49	N/A	Remuneration of Council Members: A remuneration shall be payable to the Council's member for participating in the Council's work. The value of remuneration shall depend on the scope of duties and the number of meetings participated in. The remuneration for participating in a single meeting shall account for at least 5% of the average remuneration in the national economy.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 50	N/A	Annual Report to the Sejm: Once a year, by 31 August, the President of the Office shall present to the Sejm, the Council of Ministers, the Commissioner for Human Rights, the Ombudsperson for Children, and the Prosecutor General a report on activities, containing information about the number and type of final court judgments concerning appeals to decisions or rulings of the President of the Office.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 51	N/A	Legislative Opinions: Assumptions and draft legislative measures concerning personal data shall be presented to the President of the Office for opinion.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 52	N/A	Representations and Applications to State Bodies: The President of the Office may address representations to state bodies and local government bodies aimed at ensuring effective personal data protection, and may apply to competent authorities to take legislative initiatives or issue or amend legislative measures. The entity addressed shall reply in writing within 30 days.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 53	N/A	Publications on the Public Information Bulletin: On the website, in the Public Information Bulletin, the President of the Office shall publish standard contractual clauses, approved codes of conduct, adopted standard contractual data protection clauses, and recommendations specifying technical and organizational measures applied to ensure the security of personal data processing.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 54	N/A	DPIA Lists (High Risk and Non-High Risk Processing): The President of the Office makes public a list of kinds of processing operations subject to the requirement for a data protection impact assessment referred to in GDPR Article 35(4); and may make public a list of kinds of processing operations for which no DPIA is required.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 55	N/A	ICT System for Reporting Data Breaches: The President of the Office may operate an ICT system allowing the controllers to report any case of infringement of personal data protection referred to in GDPR Article 33.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 56	N/A	Decisions on Binding Corporate Rules and Authorisations: By way of a decision, the President of the Office shall approve binding corporate rules referred to in GDPR Article 47 and give the authorization referred to in GDPR Article 46(3).	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 57	N/A	Prior Consultation (Article 36 GDPR): The controller may apply to the President of the Office with a request to hold prior consultations referred to in GDPR Article 36. Should the request not fulfil the requirements set out in GDPR Article 36(3), the President of the Office shall inform about not providing consultation, indicating the reasons therefor.	Functional	No Relationship	N/A	N/A	N/A	0	

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Art. 58	N/A	Initiation of Disciplinary Proceedings: Should the President of the Office, based on information possessed, deem that provisions concerning personal data processing have been infringed, he or she may request that disciplinary proceedings or other proceedings be initiated against the persons who committed the infringement and that the President of the Office be informed about the outcome and measures undertaken.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 59	N/A	Cooperation with Independent Supervisory Authorities: In matters of personal data protection, the President of the Office shall cooperate with independent supervisory authorities established under GDPR Article 81. The President of the Office may conclude an agreement with such authorities on cooperation and mutual exchange of information.	Functional	No Relationship	N/A	N/A	N/A	0	
CH-7	Chapter 7 — Procedure in Case of Infringement of Personal Data Protection Provisions	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 60	N/A	Competence to Conduct the Procedure: The procedure in case of infringement of the personal data protection provisions shall be conducted by the President of the Office.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 61	N/A	Participation of Social Organizations in Procedure: The social organization referred to in Article 31 of the Code of Administrative Procedure may also participate in the procedure upon the consent of the data subject, in its name and on its behalf.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 62	N/A	Notification of Delay and Progress: Where a case is not being processed on time, the President of the Office, in notifying the parties, shall also be obliged to inform them about the progress of the case and the actions being taken in its course.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 63	N/A	Translation of Foreign Language Documents: The President of the Office may request that a party presents a Polish translation of documentation drawn up in a foreign language. The party shall be obliged to obtain the translation at its own expense.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 64	N/A	Access to Legally Protected Secrets: To perform his or her duties, the President of the Office shall have the right to access information covered by legally protected secrecy, unless special provisions stipulate otherwise.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 65	N/A	Classification of Business Secrets in Procedure: The party may classify information, documents or parts thereof containing a business secret presented to the President of the Office. In this case the party shall also present a version of the document not containing classified information. The President of the Office may rescind the classification by way of a decision.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 66	N/A	Limiting Access to Files (Business Secret and Protected Secrets): The President of the Office shall issue a resolution limiting access to files in a situation where disclosure of information may lead to disclosure of legally protected secrets or company secrets, if the request to limit access is filed by the entrepreneur from which the information comes.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 67	N/A	Notification by Public Notice (More Than 20 Parties): Should the number of parties in the procedure exceed 20, the President of the Office may apply the provisions of Article 49 of the Code of Administrative Procedure.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 68	N/A	Control Procedure to Supplement Evidence: Should a need appear in the course of the procedure to supplement the evidence, the President of the Office may conduct a control procedure. The duration of the control procedure shall not count towards the procedural deadlines.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 69	N/A	Fines for Failure to Respond to Summons: In cases involving failure to respond to summons, the President of the Office shall impose a fine ranging from PLN 500.00 to PLN 5,000.00. In imposing the fine, the President of the Office shall take into account the personal situation of the summoned person and the degree of understanding of the seriousness of obligations.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 70	N/A	Provisional Limitation of Processing During Procedure: If, in the course of the procedure, it is plausibly demonstrated that processing of personal data infringes personal data protection provisions and further processing thereof may cause serious and hard-to-remove consequences, the President of the Office may, by way of a resolution, oblige the entity to limit processing, indicating the permissible scope.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 71	N/A	Referral to Court of Justice of EU (Doubts About European Commission Decisions): If, in the course of the procedure, the President of the Office decides that there are justified doubts as to compliance of a European Commission decision regarding a code of conduct with EU law, the President of the Office shall file a petition with the administrative court to address a legal question on the basis of Article 267 TFEU.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 72	N/A	Justification Requirements for Administrative Fine Decisions: Prerequisites stipulated in GDPR Article 83(2), on which the President of the Office based his or her decision imposing the administrative fine and determining its value, shall additionally be presented in the justification of the decision closing the procedure.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 73	N/A	Public Disclosure of Decisions and Post-Decision Obligations: Should the President of the Office deem it justified by public interest, after the procedure is closed, he or she shall inform the public about the decision on the website in the Public Information Bulletin. Public finance sector entities, research institutes, and the National Bank of Poland shall immediately publish information about measures undertaken to execute the decision.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 74	N/A	Suspension of Administrative Fine Pending Court Appeal: Lodging of a complaint by the party to the administrative court shall suspend the execution of the decision within the scope of the administrative fine.	Functional	No Relationship	N/A	N/A	N/A	0	
CH-8	Chapter 8 — European Administrative Cooperation	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 75	N/A	Provisional Measures in European Cooperation Cases: In cases referred to in GDPR Articles 61(8), 62(7) and 66(1), the President of the Office may issue a resolution on implementing a provisional measure. In the resolution, the President of the Office shall specify the period of time during which the provisional measure shall apply, which shall not be longer than 3 months.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 76	N/A	Language of Communications to Other Member States: Any information addressed by the President of the Office to supervisory authorities of other Member States as part of European administrative cooperation shall be translated into one of the official languages of that Member State or to English.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 77	N/A	Joint Operations with Other EU Supervisory Authorities: Should the President of the Office receive an application from the supervisory authority of another EU Member State concerning participation in a joint operation referred to in GDPR Article 62(1), or should the President of the Office address such application himself or herself, the President of the Office shall make arrangements with the other supervisory authority and immediately prepare a list of the arrangements.	Functional	No Relationship	N/A	N/A	N/A	0	
CH-9	Chapter 9 — Inspection of Compliance with Personal Data Protection Provisions	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 78	N/A	President of the Office's Power and Basis for Inspection: The President of the Office shall inspect the compliance with the personal data protection provisions. The inspection shall be conducted in accordance with the inspection plan approved by the President of the Office on the basis of information obtained by the President of the Office or as part of monitoring compliance with the GDPR.	Functional	No Relationship	N/A	N/A	N/A	0	

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Art. 79	N/A	Who May Conduct Inspections (Inspectors): The inspection shall be conducted by a person authorized by the President of the Office: an employee of the Office; or a member or employee of the supervisory authority of an EU Member State in the case referred to in GDPR Article 62.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 80	N/A	Exclusion of Inspector for Conflict of Interest: The inspector shall be excluded from participation in the inspection, upon request or ex officio, if the outcome of the inspection might have impact on his or her own rights and obligations, or on the rights and obligations of a spouse, cohabitant, or relative, or if there are justified doubts concerning his or her impartiality.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 81	N/A	Personalized Authorization for Inspection: The inspection shall be conducted after presenting a personalized authorization and an official identity card. The personalized authorization shall contain the legal basis for the inspection, designation of the authority, first and last name and post of the inspector, and the inspector's official identity card number.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 82	N/A	Specialized Expert Participation in Inspection: The President of the Office may authorize a person possessing specialized knowledge to participate in the inspection if inspection requires such knowledge. The person referred to shall be obliged to keep confidential any information acquired in the course of the inspection.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 83	N/A	Presence of Inspected Party During Inspection: The inspection shall be conducted in the presence of the inspected party or a person authorized by it. The inspected party shall be obliged to indicate in writing the person authorized to represent it during the course of the inspection.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 84	N/A	Inspector's Powers During Inspection: The inspector shall have the right to: enter land, buildings, premises, or other spaces between 6 a.m. and 10 p.m.; inspect documents and information related to the scope of the inspection; inspect places, items, devices, media, IT and ICT systems used in data processing; ask for written or oral clarifications and to question persons as witnesses; and order that appraisals and opinions be prepared.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 85	N/A	Police Assistance During Inspection: The President of the Office or the inspector may ask a local Police chief for assistance if necessary to conduct the inspection. The Police shall assist in conducting the inspection after receiving a written request at least 7 days before the date of the inspection.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 86	N/A	Questioning Employees as Witnesses: The inspector may question the inspected party's employee as a witness. The inspected party's employee shall mean a person employed on the basis of an employment relationship or performing work on the basis of a civil law contract.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 87	N/A	Determining the Actual State of Affairs: The inspector shall determine the actual state of affairs on the basis of evidence gathered in the course of the inspection, in particular on the basis of documents, items, examinations, oral or written clarifications and declarations.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 88	N/A	Inspection Protocol (Content and Signing): The inspector shall present the course of the inspection in the inspection protocol. The inspection protocol shall contain the name or first and last name and address of the inspected party, the name of the person representing the inspected party, a description of the factual state determined in the course of the inspection, and other information having a significant impact on the assessment of compliance.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 89	N/A	Duration of Inspection (Maximum 30 Days): The inspection shall be conducted for not longer than 30 days from the day on which the personalized authorization to conduct the inspection and the official identity card are presented to the inspected party. The date the inspection ends shall be the day on which the inspection protocol is signed or the day on which the fact of refusal to sign is recorded.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 90	N/A	Commencement of Infringement Procedure Following Inspection: If, based on information gathered in the course of the inspection, the President of the Office deems that personal data protection provisions could have been infringed, he or she shall be obliged to immediately commence the infringement procedure referred to in Article 60.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 91	N/A	Applicability of Articles 63-65 to Inspections: The provisions of Articles 63-65 concerning foreign language document translation, access to legally protected secrets, and classification of business secrets shall apply accordingly to inspections.	Functional	No Relationship	N/A	N/A	N/A	0	
CH-10	Chapter 10 — Third Party Liability and Proceedings Before a Court	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 92	N/A	Civil Code Applies to Claims (Gap-Fill): In matters not regulated in the GDPR, the provisions of the Civil Code shall apply to claims related to the infringement of the personal data protection provisions referred to in GDPR Articles 79 and 82.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 93	N/A	Regional Court Jurisdiction for Data Protection Claims: In matters concerning claims related to the infringement of personal data protection provisions referred to in GDPR Articles 79 and 82, the competent court shall be the regional court.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 94	N/A	Notification Obligations Between Court and President of the Office: The court shall immediately notify the President of the Office about the fact of a statement of claim being lodged and about the final ruling ending the proceedings. The President of the Office, notified of pending proceedings, shall immediately inform the court about every case concerning the same infringement pending before the President of the Office or administrative court, or that has ended.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 95	N/A	Stay of Court Proceedings Pending Action Before President of the Office: The court shall stay the proceedings if the action concerning the same infringement of personal data protection provisions was brought before the President of the Office.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 96	N/A	Discontinuation of Court Proceedings Where Decision Covers the Claim: The court shall discontinue the proceedings within the scope in which the legally binding decision of the President of the Office ascertaining an infringement includes the claim being pursued in court.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 97	N/A	Binding Effect of President of the Office's Decisions on Courts: The findings of the legally binding decision of the President of the Office ascertaining an infringement of personal data protection provisions bind the court in proceedings for indemnification of damage caused by the infringement as regards ascertainment of infringement of those provisions.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 98	N/A	President of the Office May Bring or Join Legal Proceedings: In matters concerning claims that can be pursued solely in proceedings before the court, the President of the Office may bring legal proceedings for the benefit of the data subject upon its consent, and participate in all stages of the proceedings, also upon the plaintiff's consent.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 99	N/A	President of the Office May Submit a View to Court: If the President of the Office considers it favourable to the public interest, he shall present to court a view significant for the case in matters relating to the claim for infringement of personal data protection provisions.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 100	N/A	Code of Civil Procedure Applies (Gap-Fill): In matters not regulated herein, the provisions of the Code of Civil Procedure shall apply to proceedings in the case of claims related to the infringement of personal data protection provisions referred to in GDPR Articles 79 and 82.	Functional	No Relationship	N/A	N/A	N/A	0	
CH-11	Chapter 11 — Laws on Administrative Fines and Criminal Laws	N/A	Functional	No Relationship	N/A	N/A	N/A	0	

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Art. 101	N/A	Administrative Fines on Non-Public Entities (GDPR Article 83 Basis): The President of the Office may impose on the entity obliged to comply with the provisions of the GDPR, other than entities of the public finance sector, research institutes, and the National Bank of Poland, by way of a decision, an administrative fine on the basis of and on terms stipulated in GDPR Article 83.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 101a	N/A	Obligation to Provide Data for Fine Assessment: In connection with pending proceedings for imposing an administrative fine, the entity referred to in Article 10 shall be obliged to provide to the President of the Office, upon each request, within 30 days from the date of receipt of the request, the data necessary to determine the basis of assessment of the administrative fine.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 102	N/A	Capped Administrative Fines on Public Entities: The President of the Office may, by way of a decision, impose administrative fines in the amount of up to PLN 100,000.00 on entities of the public finance sector referred to in Article 9(1)-(12) and (14), research institutes, and the National Bank of Poland. Administrative fines of up to PLN 10,000.00 may be imposed on entities of the public finance sector referred to in Article 9(13).	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 103	N/A	Euro-to-Zloty Conversion Rate for GDPR Fines: The equivalent of amounts expressed in euro as referred to in GDPR Article 83 shall be calculated in Polish zlotys and converted at the average euro exchange rate published by the National Bank of Poland in the exchange rate table in effect on 28 January of every year.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 104	N/A	Administrative Fine Revenue Goes to State Budget: Money from the administrative fines shall constitute income of the State budget.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 105	N/A	Payment, Deferral, and Installment Arrangements for Fines: The administrative fine shall be paid within 14 days of the lapse of the deadline for lodging a complaint or of the day on which the ruling of the administrative court becomes final. At the request of the fined entity, the President of the Office may defer the payment or arrange for payment in installments.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 106	N/A	Inapplicability of Certain Code of Administrative Procedure Provisions: The provisions of Articles 189d-189f and Article 189k of the Code of Administrative Procedure shall not apply.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 107	N/A	Criminal Liability for Unlawful Processing: Any person who processes personal data, although processing is not permitted, or is not authorized to process them, shall be subject to a fine, restriction of personal liberty, or imprisonment for up to two years. If the act pertains to special categories of data (racial or ethnic origin, political opinions, religious or philosophical beliefs, trade union membership, genetic data, biometric data, etc.), the sanction is restriction of personal liberty or imprisonment for up to three years.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 108	N/A	Criminal Liability for Obstructing Inspection or Withholding Fine Assessment Data: Any person who prevents or hinders the inspector from checking compliance with personal data protection provisions shall be subject to a fine, restriction of personal liberty, or imprisonment for up to two years. The same sanctions apply to any person who does not provide the data necessary to determine the basis of assessment of an administrative fine in connection with pending proceedings.	Functional	No Relationship	N/A	N/A	N/A	0	
CH-12	Chapter 12 — Amendments to Legal Provisions	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 109-157	N/A	Amendments to Existing Laws (Articles 109–157): These articles amend a large number of existing Polish statutes to replace references to the former 'Inspector General for Personal Data Protection' with 'President of the Personal Data Protection Office,' and to insert or update provisions in sectoral legislation including the Labour Code, Municipal Government, District and Voivodeship Self-Government Acts, Energy Law, Education Law, Banking Law, Prison Service, Tax Ordinance, and others, to align them with GDPR terminology and data protection requirements, including workplace monitoring, CCTV monitoring by local government, school monitoring, and state property monitoring.	Functional	No Relationship	N/A	N/A	N/A	0	
CH-13	Chapter 13 — Transitional and Alignment Provisions	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 158	N/A	Transition of Information Security Administrators to DPOs: The person holding on 24 May 2018 the function of administrator of information security referred to in the Act being repealed shall become a data protection officer starting on 1 September 2018, unless before that date the controller informs the President of the Office about designating a different person for the post of data protection officer.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 159	N/A	Pending Inspections Under the Old Act: Inspections commenced under the Act being repealed and not completed before the effective date of this Act shall be governed by the hitherto provisions. Authorizations and official identity cards issued before the effective date shall remain valid until the end of such inspections.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 160	N/A	Pending Proceedings Under the Old Act: Proceedings conducted by the Inspector General for Personal Data Protection, commenced and not finished before the effective date of this Act, shall be conducted by the President of the Office on the basis of the Act repealed, in accordance with the principles of the Code of Administrative Procedure.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 161	N/A	Reply Obligation for Prior Addresses/Requests: The subject to which an address or request was served before the effective date of this Act shall be obliged to provide to the President of the Office a reply to the address or request within 30 days of the effective date of this Act.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 162	N/A	Enforcement Proceedings (Transfer of Creditor Status): In case of enforcement proceedings conducted on the basis of an enforcement title issued by the Inspector General for Personal Data Protection before the effective date of this Act and not finished, the creditor shall be the President of the Office.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 163	N/A	Prior Enforcement Titles Remain in Force: In enforcement proceedings commenced on the basis of the provisions of the Act amended in Article 110 and not finished before the effective date of this Act, enforcement titles and rulings containing the position of the Inspector General for Personal Data Protection shall remain in force.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 164	N/A	Pending Proceedings on Creditor Position: Proceedings concerning the position of the Inspector General for Personal Data Protection as the creditor, commenced on the basis of Article 34 of the Act amended in Article 110 and not finished before the effective date, shall be conducted by the President of the Office.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 165	N/A	Existing Implementing Rules Remain in Force (12-Month Transition): Existing implementing rules issued on the basis of the Act repealed in Article 175 shall remain in force until the day of entry into force of the implementing rules issued on the basis of Article 47 of this Act, no longer than 12 months of its effective date.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 166	N/A	Inspector General Becomes President of the Office: On the day this Act comes into force, the Inspector General for Personal Data Protection shall become the President of the Office. The person appointed to the post of the Inspector General shall remain in that post until the lapse of the term of office for which it was appointed.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 167	N/A	Bureau Becomes the Office (Staff Transfer): On the effective date of this Act, the Bureau of the Inspector General for Personal Data Protection shall become the Office. On the effective date, the employees of the Bureau shall become the employees of the Office.	Functional	No Relationship	N/A	N/A	N/A	0	

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Art. 168	N/A	Property Transfer to the Office: On the effective date of this Act, the property of the State Treasury in possession of the Bureau of the Inspector General for Personal Data Protection shall become the property in possession of the Office.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 169	N/A	Receivables and Liabilities Transfer: Receivables and liabilities of the Bureau of the Inspector General for Personal Data Protection shall become, on the effective date of this Act, the receivables and liabilities of the Office.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 170	N/A	Submission of Old Annual Report: In a situation where the Inspector General for Personal Data Protection does not submit the report referred to in the Act repealed by the effective date of this Act, the report shall be submitted by the President of the Office by 31 July 2018.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 171	N/A	Substitution in Pending Court and Administrative Proceedings: In court proceedings, court and administrative proceedings, or administrative proceedings commenced and not finished before the effective date of this Act, in which the Inspector General was a party or participant, the President of the Office shall become the party or participant as of the effective date.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 172	N/A	First DPIA List to Be Issued Within 3 Months: The President of the Office shall issue the first list of processing operations subject to the DPIA requirement within 3 months of the effective date of this Act.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 173	N/A	Creation of the Council: A Council shall be created.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 174	N/A	Maximum Budget Expenditure Limits (2018–2027): The maximum limit of expenses from the State Budget intended for performing the activities envisaged under this Act shall amount to: year 2018 — PLN 19,639,000.00; year 2019 — PLN 13,541,000.00; years 2020–2027 — PLN 13,860,000.00 each year. The President of the Office shall monitor the spending of the limit and assess its consumption at the end of every quarter.	Functional	No Relationship	N/A	N/A	N/A	0	
CH-14	Chapter 14 — Final Provisions	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 175	N/A	Repeal of the 1997 Personal Data Protection Act: The Personal Data Protection Act of 29 August 1997 shall be repealed, excluding Articles 1–3(1), 4–7, 14–22, 23–28, 31, and chapters 4, 5, and 7, which shall remain in force with respect to processing of personal data for the purpose of recognizing, preventing, detecting, and combating unlawful acts until the date of entry into force of the laws implementing Directive (EU) 2016/680.	Functional	No Relationship	N/A	N/A	N/A	0	
Art. 176	N/A	Entry into Force: This Act shall enter into force on 25 May 2018.	Functional	No Relationship	N/A	N/A	N/A	0	